

Court No. - 21

Case :- WRIT - C No. - 11444 of 2023

Petitioner :- Kamal Kumar Yadav

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Arun Mishra

Counsel for Respondent :- C.S.C.,Ajay Singh,Gaurav Singh

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Prashant Kumar,J.

Learned counsel for the respondent prays for and is granted ten days' time to obtain instructions.

List as fresh on 18.04.2023.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 7.4.2023

Shivangi

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Counsel for Respondent :- C.S.C.,Ajay Singh,Gaurav Singh

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Prashant Kumar,J.

Supplementary affidavit filed today is taken on record.

The instant petition has been filed inter alia praying for quashing of an order dated 3.2.2023 which according to the petitioner had been issued without considering his representation. The other relief sought is for holding certain clauses of the U.P. Electricity Supply Code, 2005 to be ultra vires of Section 181 of the Electricity Act, 2003 and for quashing of a notification dated 27.6.2006 by which the State Government had designated assessing officers under the provisions of the Electricity Act, 2003..

The contention of learned counsel for the petitioner is that without deciding the objection of the petitioner filed against the notice of provisional assessment, the respondents have passed the order dated 3.2.2023. It is in context of the said contention that other reliefs have been sought.

We have gone through the said order. It is in fact a reply given by the Electricity Department in response to a notice of the petitioner dated 11.1.2023. The communication records that the premises of the petitioner was raided by the officials of the Electricity Department on 17.12.2022 and he was found committing theft of electricity. A first information report (Case Crime No. 1421 of 2022 dated 18.12.2022) had been lodged against the petitioner under Section 135 of the Electricity Act. A provisional notice of assessment had also been issued to him. The communication also

mentions that further action in terms of the notice given by the petitioner could be taken only after the petitioner deposits the amount.

It is not clear as to what prayer was made by the petitioner in his notice dated 18.1.2023 and in response to which the above reply was given. Copy of the notice dated 11.1.2023 has also not been annexed with the writ petition. Learned counsel for the petitioner by referring to a letter annexed at page 30 tried to contend that it is the same notice dated 11.1.2023. The said communication does not bear any date. In the writ petition also, it is not stated that the said communication is the notice dated 11.1.2023. In such circumstances, it is not possible for this Court to ascertain as to in what context the aforesaid reply was given by the respondent Department.

The petitioner has filed the instant petition without annexing the relevant documents which amounts to suppression of material facts. Moreover, by filing supplementary affidavit, the petitioner has given up challenge to the communication dated 3.2.2023. Consequently, the other reliefs are rendered academic in nature, which we decline to examine in the instant case.

The petition is consequently dismissed.

The order has been passed in the presence of Sri Gaurav Singh, learned counsel for the respondent Electricity Department.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 18.4.2023
Jaideep/-